

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.



CHAPTER lxxxii.

An Act to confirm a Provisional Order under the A.D. 1937.
Private Legislation Procedure (Scotland) Act
1936 relating to Motherwell and Wishaw Burgh.
[20th July 1937.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by the
Secretary of State under the provisions of the Private 26 Geo. 5. &
Legislation Procedure (Scotland) Act 1936 and it is 1 Edw. 8.
requisite that the said Order should be confirmed by c. 52.
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule
hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Motherwell and Short title.
Wishaw Burgh Order Confirmation Act 1937.

A.D. 1937.

SCHEDULE.

MOTHERWELL AND WISHAW BURGH.

Provisional Order to extend the boundaries of the burgh of Motherwell and Wishaw to confer further powers upon the provost magistrates and councillors of the burgh with regard to their water and gas undertakings to make provision with respect to the local government and health of the burgh and for other purposes.

WHEREAS the burgh of Motherwell and Wishaw (hereinafter called "the burgh") in the county of Lanark is under the government for municipal purposes of the provost magistrates and councillors of the burgh of Motherwell and Wishaw (hereinafter called "the Town Council") :

And whereas the lands available for the erection of dwelling-houses within the existing burgh are limited and it is necessary to provide for the erection of houses on lands outwith the boundaries thereof for the accommodation of persons employed therein and additional lands will be required for such purposes :

And whereas the areas described in the First Schedule to this Order are situate in the county of Lanark and immediately adjoin the existing burgh :

And whereas it is expedient and would be for public and local advantage that the boundaries of the existing burgh should be extended and should include the said areas as by this Order provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh should as by this Order provided be extended to and be applicable within the burgh as extended by this Order and to the inhabitants thereof :

And whereas it is expedient that subject to the provisions of this Order the said areas should be separated and disjoined for the purposes of this Order from the county of Lanark and that all matters of administration and management and all jurisdictions powers functions

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

and authorities within the said areas should devolve upon and be vested in the Town Council : A.D. 1937.

And whereas it is expedient that the said areas should be added to certain existing wards of the burgh as in this Order provided :

And whereas it is expedient to extend the limits within which the Town Council are authorised to supply water and gas to include the said areas as hereinafter in this Order provided :

And whereas it is expedient that further provision should be made with reference to cleansing and sanitary matters and the local government and health of the burgh :

And whereas it is expedient that the Town Council should be authorised to borrow money for the purposes in this Order mentioned :

And whereas it is expedient that the further provisions contained in this Order should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows :—

PART I.

PRELIMINARY.

1. This Order may be cited as the Motherwell and Wishaw Burgh Order 1937. Short title.

2. This Order except where otherwise expressly provided shall commence and have effect on and from the date of the passing of the Act confirming this Order which date is in this Order referred to as “the commencement of this Order.” Commence-
ment of
Order.

3. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Extension of boundaries.

Part III.—Water and gas.

Part IV.—Public health sanitary and cleansing.

Part V.—Miscellaneous.

Order
divided
into Parts.

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937.

—
 PART I.
 —cont.
 Interpretation.

4. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the several words and expressions to which meanings are assigned by any public or local Act of Parliament or Order applicable within the burgh shall subject to the provisions of this Order have the same respective meanings And in this Order unless the context otherwise requires the following expressions shall have the meanings assigned to them in this section (that is to say) :—

“ Existing burgh ” means the burgh of Motherwell and Wishaw within the limits and boundaries existing immediately previous to the sixteenth day of May one thousand nine hundred and thirty-seven ;

“ Burgh ” means the existing burgh as extended by this Order ;

“ Added areas ” means the portions of the county by this Order incorporated with the existing burgh and described in the First Schedule to this Order and shown on the map to be deposited as hereinafter provided ;

“ Wards ” means wards of the burgh ;

“ Town Council ” means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be ;

“ Magistrates ” means the magistrates of the existing burgh or of the burgh as the case may be ;

“ Town clerk ” means the town clerk of the existing burgh or of the burgh as the case may be ;

“ County ” means the county of Lanark ;

“ County council ” means the county council of the county ;

“ District council ” means any district council of the county whose district or part of whose district is situated in the added areas ;

“ Town Councils Acts ” means the Town Councils (Scotland) Acts 1900 to 1923 and any Acts amending or extending the same ;

“ Order of 1920 ” means the Motherwell and Wishaw Burgh Order 1920 ;

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

A.D. 1937.

PART I.

—cont.

61 & 62 Vict.
c. cxxv.
62 & 63 Vict.
c. lviii.
63 & 64 Vict.
c. lxii.
8 Edw. 7.
c. lix.
4 & 5 Geo. 5.
c. lxxx.

“ Water Acts ” means the Wishaw Water (Additional Supply) Act 1898 the Wishaw Water Act 1899 the Motherwell Water (Additional Supply) Act 1900 the Motherwell Burgh Extension and Sewage Purification Act 1908 the Motherwell Water and Sewage Purification Act 1914 the Motherwell Water (Supplementary Supply) Order 1918 and the Order of 1920;

“ Daily penalty ” means a penalty for every day on which any offence is continued after conviction therefor;

“ Sheriff ” means the sheriff of the county and includes his substitutes.

PART II.

EXTENSION OF BOUNDARIES.

5. This Part of this Order shall except as hereinafter provided be deemed to have come into operation on and from the sixteenth day of May one thousand nine hundred and thirty-seven.

Commence-
ment of
Part II of
Order.

6. The municipal and police boundaries of the existing burgh shall be and are hereby extended to and shall include and comprehend in addition to the area embraced in the existing burgh the added areas as described in the First Schedule to this Order and the burgh shall be comprised within the boundaries set forth and described in the Second Schedule to this Order :

Extension
of bound-
aries.

Provided that the rules prescribed by the Representation of the People Acts shall be observed and receive effect with reference to the description of boundaries contained in the said Second Schedule.

7. A map of the burgh of which eleven copies have been signed by Matthew George Fisher counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within one month after the passing of the Act confirming this Order be deposited as follows (that is to say) one copy with the town clerk one copy with the sheriff clerk of the county at his office in Hamilton one copy in the office of the Clerk of the Parliaments House of Lords one copy in the Committee and Private Bill Office of the House of Commons

Map of
burgh.

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937.

PART II.

—cont.

one copy at the Scottish Office Whitehall one copy with the Registrar-General of Births Deaths and Marriages in Scotland one copy with the Minister of Agriculture and Fisheries one copy with the Commissioners of Inland Revenue one copy with the Commissioners of Customs and Excise one copy with the Minister of Transport and one copy with the Board of Trade.

If there be any discrepancy between the said map and the description in the Second Schedule to this Order the said map shall be deemed to be correct and shall prevail.

Order not to affect election of members to serve in Parliament.

8. Nothing in this Order contained shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain in all respects as if the Act confirming this Order had not been passed.

Added areas disjoined from county.

9. The added areas shall be and the same are hereby for the purposes of this Order and subject to the provisions thereof disjoined from the county.

Abolition of special districts.

10.—(1) The special drainage scavenging and lighting districts so far as situated within the added areas shall be and are hereby abolished and to that extent all resolutions of the county council and all orders and decrees of the sheriff or of any other authority constituting or relating to the said special districts shall be of no force or effect so far as extending to or affecting any part of the burgh and the county council shall be relieved by the Town Council from all obligations in respect of the said special districts so far as the same are situated within the added areas.

(2) The Town Council shall not in respect of such special districts be under any obligations nor except by agreement with the local authority of such districts exercise any powers in such districts so far as they are beyond the burgh.

Added areas added to existing wards.

11.—(1) The added areas shall be added to the wards of the existing burgh as follows (that is to say):—

(a) The portion of the added areas described in Part I of the Third Schedule to this Order shall be added to and form part of Ward No. 1;

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

(b) The portion of the added areas described in Part II of the said Third Schedule shall be added to and form part of Ward No. 2;

(c) The portions of the added areas described in Part III of the said Third Schedule shall be added to and form part of Ward No. 3;

(d) The portion of the added areas described in Part IV of the said Third Schedule shall be added to and form part of Ward No. 4;

(e) The portion of the added areas described in Part V of the said Third Schedule shall be added to and form part of Ward No. 5;

(f) The portions of the added areas described in Part VI of the said Third Schedule shall be added to and form part of Ward No. 6;

(g) The portion of the added areas described in Part VII of the said Third Schedule shall be added to and form part of Ward No. 7;

(h) The portion of the added areas described in Part VIII of the said Third Schedule shall be added to and form part of Ward No. 8;

(i) The portions of the added areas described in Part IX of the said Third Schedule shall be added to and form part of Ward No. 9.

(2) Nothing in this section shall affect the application to the burgh of the provisions of the Local Government (Scotland) Act 1929 with regard to the alteration of the number of magistrates and councillors in burghs and to the number of councillors in each ward and to the division or re-division into wards.

12. The provisions of the Town Councils Acts so far as the same apply to the existing burgh regarding the election of town councillors in burghs divided into wards or districts shall subject to the provisions of this Order apply to the nine wards and to the elections therein and to the election qualification continuance in office declinatures resignations and retirements of councillors and to supplying vacancies in the council by death disability resignations or other causes or otherwise.

13. For the purpose of the Acts in force for the time being relating to the registration of local government

A.D. 1937.

PART II.

—cont.

19 & 20
Geo. 5. c. 25.

Applica-
tion of Acts
as to
municipal
elections.

Register of
voters.

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937.

PART II.
 —cont.

voters and the election of town councillors for the respective wards in the burgh the added areas shall notwithstanding anything in this Order contained be deemed to be and to have always been a part of the burgh and to have been included in the wards specified in the section of this Order of which the marginal note is “ Added areas added to existing wards ” for the making up of the register of voters.

Town
 Council to
 administer
 affairs of
 burgh.

14. The Town Council shall in all respects stand in relation to the administration of the affairs and property of the burgh and of property under the care and management of the Town Council in the same position in which the Town Council of the existing burgh stood previous to the commencement of this Part of this Order and the Town Council shall have the same rights and powers of administration of the property and affairs of the burgh and of making all usual and necessary appointments as lawfully belonged to and were exerciseable or exercised by the Town Council of the existing burgh in regard thereto anything in the set usage or customs of the existing burgh to the contrary notwithstanding.

Power of
 Town
 Council and
 magistrates
 extended to
 burgh.

15. The Town Council the magistrates and the dean of guild court shall have possess and may exercise over the burgh and the inhabitants thereof all the jurisdictions powers rights and authorities which they respectively possessed and exercised over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates and assessments dues and charges and all rights and privileges and immunities and obligations enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh.

Powers of
 other
 jurisdic-
 tions to
 cease.

16. Subject to the provisions of this Order all jurisdictions rights powers and duties which previous to the commencement of this Part of this Order were exercised or exerciseable by the county council or any local or licensing or other authority within the added areas or any part thereof under any public general or local or private Act of Parliament or Order shall cease and determine.

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

17. Subject to the provisions of this Order all property belonging to the Town Council at the commencement of this Part of this Order or to which the Town Council is entitled or which is held or administered by any person for or on behalf of the community of the existing burgh or for the public ends and purposes thereof shall be vested in and be held by the Town Council for the behoof and benefit of the burgh or as the case may be administered by such person for or on behalf of the community of the burgh or for the public ends and purposes thereof and all debts and obligations due by or exigible from the Town Council at the commencement of this Part of this Order shall be due by and exigible from the Town Council and all debts due to the Town Council by any person prior to the commencement of this Part of this Order may be demanded and recovered from such person and received and applied by the Town Council for the behoof of the burgh.

A.D. 1937.

PART II.

—cont.

Property of
existing
burgh
vested in
Town
Council.

18.—(1) Subject to the provisions of this Order all property vested in held by or due or belonging to the county council in the added areas shall by virtue of this Order be transferred to vested in held by and be due and belong to the Town Council and shall form part of the property and assets of the Town Council for all the estate and interests therein of the county council and shall be received held and enjoyed by the Town Council accordingly.

Property
and
liabilities in
added
areas
vested in
Town
Council.

(2) Subject to the provisions of this Order all the powers duties liabilities debts obligations contracts and agreements of the county council in relation to the added areas shall by virtue of this Order be transferred and attached to the Town Council and shall form part of the powers duties liabilities debts obligations contracts and agreements of the Town Council and be enjoyed performed paid and discharged by them.

19. Subject to the provisions of this Order every rate charge or assessment authorised to be requisitioned for levied and collected by the county council over the added areas or any part or parts thereof which has not been actually imposed previous to the commencement of this Part of this Order shall thereupon cease and determine within the added areas and thereafter all assessments and rates leviable within the existing burgh

Assessment
of burgh.

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

—
PART II.

—cont.

by the Town Council shall be leviable on and within the burgh in the same way and manner as the same were leviable on and within the existing burgh:

Provided that the Town Council shall pay over to the county council a sum equal to (1) one fourth of the rates charges or assessments which would have been levied and collected by the county council within the added areas for the year from Whitsunday one thousand nine hundred and thirty-seven to Whitsunday one thousand nine hundred and thirty-eight had the Act confirming this Order not been passed in respect of functions which consequent upon the inclusion within the boundaries of the burgh of the added areas the county council will cease to exercise within the added areas and (2) one fourth of so much of the General Exchequer Grant under the Local Government (Scotland) Act 1929 which the Town Council will receive for the year commencing Whitsunday one thousand nine hundred and thirty-seven as is attributable to expenditure upon functions which the county council will cease to exercise within the added areas.

Recovery
of assess-
ments
within
added
areas.

20. Every rate charge or assessment which has been actually imposed by the county council within the added areas or any part thereof before the commencement of this Part of this Order together with all arrears thereof shall continue to be due and payable to and may be collected and levied by the county council and by the same ways and means and under the same restrictions and regulations as if the Act confirming this Order had not been passed and shall be received and applied by the county council to and for the purposes for which the same were authorised to be levied.

Roads &c.
in added
areas.

21. Subject to the provisions of this Order the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains in the added areas so far as the same were vested in and managed maintained and repaired by the county council shall by virtue of this Order be transferred to and vested in and managed maintained and repaired by the Town Council along with and in the same way and manner and to the same extent as the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains within the existing burgh and the

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

county council shall be freed and relieved of the repair and maintenance of all such roads streets highways lanes bridges foot-pavements and footpaths and sewers and drains so far as within the added areas in all time coming.

A.D. 1937.

—
PART II.

—cont.

22. Nothing in this Order contained with respect to the vesting in the Town Council of roads streets highways lanes bridges foot-pavements footpaths sewers or drains within the added areas shall prevent any superiors owners or other persons by whom or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between such persons respectively.

Saving
rights in
roads &c.

23.—(1) All books documents maps and plans directed or authorised to be kept by the county council in the added areas by any Act or otherwise shall so far as they relate solely to the added areas belong and be transferred to the Town Council and in so far as they would at the commencement of this Part of this Order be receivable in evidence shall be admitted as evidence in all courts and proceedings notwithstanding the cesser of the powers of the county council.

Books to be
evidence.

(2) The foregoing provision shall not apply to the books documents maps and plans kept by the county council which relate to parts of the county other than the added areas but the Town Council and their officers shall be entitled to access to such books documents maps and plans in so far as may be necessary in relation to matters affecting the added areas and the respective clerks or other officers of the county council shall afford all reasonable facilities for that purpose.

24.—(1) Except so far as inconsistent with or varied by this Order the provisions of all public and general and local and personal Acts and Orders which applied to the existing burgh and all byelaws rules regulations and orders made thereunder shall extend and apply to the burgh in the same way and to the like extent as they applied to and had effect within the existing burgh:

Applica-
tion of
general and
local Acts
and bye-
laws.

Provided that nothing in this section shall extend the area of supply authorised by the Motherwell Electric Lighting Order 1895 as extended in pursuance of the Order of 1920.

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

—
PART II.
—cont.

(2) Subject to the provisions of this Order all bye-laws rules regulations and orders made under the provisions of any Acts or Orders relative to and in force in the added areas or any part thereof shall cease to have effect except in so far as the same may have been acted upon.

Variation of
procedure
under
Temperance
(Scotland)
Act 1913.
3 & 4 Geo. 5.
c. 33.

25. The Secretary of State may in order to meet the circumstances arising from the extension of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure.

Insurance
com-
mittees.

26. The powers of the Department of Health for Scotland (hereinafter in this section referred to as "the department") shall operate for the purpose of reconstituting by order made by the department the insurance committees for the county and for the burgh as from the commencement of this Part of this Order or such subsequent date as shall be determined by the department and that in such manner and to such extent if any as the department may deem necessary in consequence of the provisions of this Order and for the adjustment consequent on the said provisions of the boundaries of the areas and the financial rights and obligations of the said committees and any such order made by the department may contain such incidental supplemental and consequential provisions as may appear to the department necessary or expedient for carrying the order made by them into effect and for adapting thereto the provisions of the National Health Insurance Acts 1936 and 1937 Provided that any order so made shall be laid before both Houses of Parliament as soon as may be after it is made.

Poor law
settlement.

27.—(1) Every person whose settlement is derived from birth or residence for the statutory period of three years in the added areas shall be deemed to have a settlement within the burgh.

(2) Every person who at the commencement of this Part of this Order is resident in the added areas and is in course of acquiring a settlement in the county by reason of such residence shall for the purposes of his settlement be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Part of this Order resided within the added areas.

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

(3) Where at the commencement of this Part of this Order a person has a settlement within the county by reason of residence partly in the added areas and partly in another part of the county the burgh or the county as the case may be shall be deemed to be the area of settlement of that person according as the place of his residence at the time of his acquiring a settlement was within the added areas or within another part of the county.

A.D. 1937.

—
PART II.
—cont.

(4) For the purposes of section 4 of the Poor Law (Scotland) Act 1898 and subsection (3) of section 3 of the Poor Law (Scotland) Act 1934 every person who at the commencement of this Part of this Order is resident in the added areas shall be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Part of this Order resided within the added areas or within any other part of the county.

61 & 62 Vict.
c. 21.
24 & 25
Geo. 5. c. 52.

28. The House Letting and Rating (Scotland) Act 1911 and any Act amending or extending the said Act shall if in operation in the added areas or any part thereof apply to the added areas or such part thereof until the fifteenth day of May one thousand nine hundred and thirty-eight as if the added areas had not been added to the burgh until that date Provided that anything requiring to be done under the said Act to or by the county council in the added areas shall be done to or by the Town Council.

Application
of House
Letting and
Rating
Act.
1 & 2 Geo. 5.
c. 53.

29. All certificates of licence granted before the commencement of this Part of this Order by the competent licensing court for the added areas or any part thereof and then in force shall unless the same be revoked or previously expire subsist and continue until the twenty-eighth day of May one thousand nine hundred and thirty-eight but all prosecutions for offences under the Licensing (Scotland) Acts 1903 to 1923 with reference to such certificates or for any breach thereof or of the byelaws or regulations made under the said Acts shall after the commencement of this Part of this Order be proceeded with in the same way as if such certificates had been originally granted within the burgh and all applications for renewal or transfer of such certificates shall after the commencement of this Part of this Order be disposed of by the licensing court of the burgh.

Provisions
as to
subsisting
licences.

A.D. 1937.

PART II.

—cont.

Power to
Town
Council and
county
council to
enter into
agree-
ments.

30.—(1) Subject and without prejudice to any of the provisions of this Order the Town Council and the county council may make and carry into effect agreements with respect to the transfer of property from the county council to the Town Council and for settling and adjusting any claims or any doubt or difference arising in relation thereto.

(2) The provisions of any such agreement shall be deemed to be within the powers of the Town Council and the county council and if and when made shall have and be carried into effect accordingly.

(3) Any difference or dispute arising as to any such agreement or as to any other matter or thing in relation to the transference under this Order of the property of the county council shall be determined by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of any of the parties concerned.

Financial
adjust-
ments.

4 & 5 Geo. 5.
c. 74.
52 & 53 Vict.
c. 50.

31. The financial adjustments as between the Town Council and the county council consequent upon the inclusion within the boundaries of the burgh of the added areas shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section 50 of the Local Government (Scotland) Act 1889 shall apply and have effect on the extension of the boundaries of the existing burgh by this Part of this Order and any dispute or difference arising in connection with such adjustments shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the Town Council or the county council.

For
protection
of county
council.

32. The following provisions (unless otherwise agreed in writing between the Town Council and the county council) shall apply and have effect (that is to say) :—

- (1) The Town Council shall on the passing of the Act confirming this Order repay to the county council the total amount of all sums advanced by the county council by way of loans on the security of subjects within the added areas

under the Small Dwellings Acquisition Acts 1899 to 1923 the Housing &c. Act 1923 the Housing (Financial Provisions) Act 1924 and the Housing (Scotland) Act 1925 and any Acts amending the said Acts or any of them under deduction of any sums repaid to the county council prior to the passing of the Act confirming this Order and in consideration of such payment the county council shall assign to the Town Council all bonds and dispositions in security or other securities held by them for repayment of such advances with all rights competent to them thereunder :

A.D. 1937.
—
PART II.
—*cont.*
13 & 14
Geo. 5. c. 24.
14 & 15
Geo. 5. c. 35.
15 & 16
Geo. 5. c. 15.

- (2) The Town Council shall on the passing of the Act confirming this Order also repay to the county council the total amount of all sums advanced by the county council as subsidies to persons in respect of subjects in the added areas under the Housing &c. Act 1923 the Housing (Financial Provisions) Act 1924 and the Housing (Scotland) Act 1925 and any Acts amending the said Acts or any of them under deduction of any grants received by or due to the county council from the Department of Health for Scotland in respect thereof at or prior to the passing of the Act confirming this Order and in consideration of such payment the county council shall transfer to the Town Council all rights which they have to receive grants from the Department of Health for Scotland in respect of such subsidies :
- (3) The county council shall transfer to the Town Council all rights which they have to receive from the Department of Health for Scotland payments or grants in respect of any housing schemes carried out by the county council in the added areas under the Housing (Scotland) Acts 1890 to 1924 and the Housing (Scotland) Act 1925 and any Acts amending the said Acts or any of them :
- (4) If any difference shall arise between the Town Council and the county council under this section such difference shall failing agreement

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

—
PART II.
—cont.

be determined by an arbiter to be named (failing agreement by the parties to name an arbiter) by the sheriff on the application of either of the parties.

Actions
&c. not to
abate.

33. No action arbitration prosecution or proceeding commenced pending or existing by or against the county council in relation to any powers liabilities or property by this Order transferred to the Town Council shall in any wise abate or be discontinued or prejudicially affected by reason of the passing of the Act confirming this Order but may be continued prosecuted and enforced by or in favour of or against the Town Council as successors of the county council as fully and effectually as they could have been continued prosecuted and enforced by or in favour of or against the county council if the Act confirming this Order had not been passed.

Repeal of
laws &c.
incon-
sistent with
Order.

34. All laws statutes jurisdictions powers privileges and usages now in force in relation to the existing burgh or within the added areas in so far as they are inconsistent or at variance with the provisions of this Part of this Order shall cease to apply to the burgh.

Saving of
existing
jurisdic-
tions &c.

35. Nothing in this Part of this Order contained shall transfer or be deemed or construed to transfer to the Town Council—

- (1) Any main sewer of the county council in the added areas used for the purposes of areas in the county other than the added areas :
- (2) Any property in the added areas belonging to the county council as the electricity authorised undertakers in the said areas or any powers of the county council exercised or exerciseable in the added areas as such authorised undertakers :
- (3) (a) any jurisdiction power or right hitherto exercised or exerciseable by the county council within the added areas which was also exercised or exerciseable within the existing burgh by the county council previous to the commencement of this Part of this Order ;
(b) any liability debt duty or obligation incurred by or incumbent on the county council

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

in connection with the exercise of any such jurisdiction power or right; or A.D. 1937.

(c) any property officer or servant held or employed for the future exercise of any such jurisdiction power or right or for the discharge of any such liability debt duty or obligation.

PART II.
—cont.

36. Notwithstanding anything contained in the Local Government (Scotland) Act 1889 or this Order any member of the county council or of a district council who at the commencement of this Part of this Order represents any electoral division situated partly within and partly without the added areas shall continue to be a member of the county council or of the district council as the case may be (unless he resigns) until the next election of county councillors or district councillors as the case may be after the commencement of this Part of this Order. Saving for county councillors &c.

PART III.

WATER AND GAS.

37.—(1) As on and from the sixteenth day of May one thousand nine hundred and thirty-eight the limits of compulsory supply of water by the Town Council under the powers contained in the Water Acts are subject to the provisions of this Order hereby extended so as to include the burgh and the said Acts are hereby amended accordingly and any expressions in the said Acts referring to the then burgh of Motherwell or the then burgh of Wishaw shall for all the purposes of the said Acts mean the burgh and the expression "the limits of compulsory supply" shall mean the said limits as extended by this Order. Extension of compulsory limits of water supply.

(2) The county council shall not levy water rates assessments dues or charges for any period subsequent to the fifteenth day of May one thousand nine hundred and thirty-eight within any part of the added areas nor except with the consent of the Town Council supply water in any part of the added areas and the provisions of any Act or Order so far as the same authorise the supply of water or the levying of water rates assessments dues or charges by the county council for any period subsequent to the fifteenth day of May one thousand nine

A.D. 1937. hundred and thirty-eight within the added areas shall
 cease and determine.

PART III.

—cont.

Transfer
 of water
 pipes in
 added
 areas.

38. As on and from the sixteenth day of May one thousand nine hundred and thirty-eight the water pipes and apparatus belonging to the county council situate within the added areas (other than through-going mains necessary for the supply of other parts of the water area of supply of the county council) are by virtue of this Part of this Order transferred to and vested in the Town Council and shall form part of their water undertaking and shall be held and used by the Town Council for the purposes of their water undertaking.

Compensa-
 tion to
 county
 council in
 respect of
 powers as
 to water
 supply.

39. The following provisions (unless otherwise agreed in writing between the Town Council and the county council) shall apply and have effect (that is to say):—

(1) In respect of the cesser of the county council's powers as water authority in the added areas and the transfer to the Town Council of the water pipes and apparatus belonging to the county council therein provided for by the two immediately preceding sections of this Order the Town Council shall pay to the county council such sum as may be mutually agreed upon or failing agreement as may be fixed by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the Town Council or the county council and the compensation to be paid by the Town Council to the county council in respect of the said cesser of the county council's powers as water authority in the added areas shall be fixed on the basis of payment as for transfer of a revenue producing undertaking :

(2) The sum payable by the Town Council to the county council in terms of this section shall be paid to the county council on or before the fifteenth day of May one thousand nine hundred and thirty-eight together with interest thereon at the rate of four per centum per annum from that date until the date of actual

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

payment and shall be accepted by the county council as full compensation in respect of the matters dealt with in the two immediately preceding sections of this Order :

A.D. 1937.

—
PART III.
—cont.

- (3) Any sum and the interest thereon (if any) paid by the Town Council to the county council under this section shall be applied by the county council with the sanction of the Secretary of State either in repayment of debt or for such other purposes as the county council may determine.

40. The limits of the supply of gas by the Town Council under the Burghs Gas Supply (Scotland) Acts 1876 to 1918 and the Order of 1920 are hereby extended to and shall include the burgh.

Extension
of limits of
gas supply.

PART IV.

PUBLIC HEALTH SANITARY AND CLEANSING.

41.—(1) Every occupier of any shop or other premises used for the sale preparation or storage of butcher meat poultry game fish butter meal bread or any other article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep such shop or other premises clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Penalty for
want of
cleanliness
in meat
and pro-
vision
shops &c.

(2) Every person who uses any cart basket or other article or thing for the disposal or sale of any article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep the same clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

42.—(1) A noise nuisance shall be liable to be dealt with summarily in the manner provided in Part II of the Public Health (Scotland) Act 1897 in the same way and to the same effect as in cases under subsection (6) of section 16 of that Act and the Town Council shall have all the powers and duties with reference to a noise

Noise
nuisance.
60 & 61 Vict.
c. 38.

A.D. 1937. nuisance which a local authority has with reference
to a nuisance under the said Act.

PART IV.
—cont.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case :

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practical means of preventing or mitigating it having regard to the cost have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

Collection
and
disposal of
refuse.

43.—(1) Subject to the provisions of this section the Town Council shall make or cause to be made provision for the effectual scavenging of the burgh in a suitable manner for keeping the streets clean and for the collection disposal or treatment of domestic refuse but the Town Council shall not be bound to collect and remove manure soot or trade refuse otherwise than as provided in this section.

(2) The Town Council may make arrangements with shopkeepers occupiers of factories or business premises or others for the collection removal and disposal of trade refuse manure or soot at such times and on such terms as the Town Council may determine.

(3) For the purposes of this section—

“ Domestic refuse ” means any dust ashes and other refuse arising from or incidental to the normal occupation of any dwelling-house shop office warehouse or other similar premises but does not include manure or trade refuse ;

“ Trade refuse ” means (1) the refuse arising out of or incidental to the carrying on of any trade business or manufacture including (a) ashes clinker and flue dust from any kiln engine furnace oven or stove used in connection with

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

any industrial or commercial purpose or process (b) packing material and similar refuse from shops warehouses and workshops (c) fruit and vegetable rubbish (d) meat and fish offal and (e) garage debris and (2) garden rubbish.

A.D. 1937.

—
PART IV.
—cont.

44.—(1) The Town Council may require the occupiers of houses shops or other premises to provide portable dustbins for domestic refuse and such dustbins shall be of such size and construction as may be approved by the Town Council.

Dustbins.

(2) The Town Council may purchase suitable or standard dustbins and supply the same to occupiers of shops houses or other premises on such terms and conditions as may be agreed upon.

45. Any person who in connection with the loading or unloading of goods or articles of any description causes or permits straw paper packing material or debris from any crate or package to be thrown or laid on any street and does not immediately remove the same or in any way litters any street shall be liable to a penalty not exceeding forty shillings.

Loading or
unloading
of goods on
street.

46. Every person in charge of a dog in any street and having the dog on a lead who shall allow or permit such dog to deposit its excrement upon a footway shall be liable to a penalty not exceeding forty shillings.

Nuisance
by dogs.

47.—(1) If any watercourse or ditch situate upon any land in the burgh laid out for building or on which any such land abuts requires to be wholly or partially filled up or covered over the Town Council may by notice in writing require the owner or owners of such land to substitute for such watercourse or ditch a pipe drain or culvert Provided that nothing in this section shall authorise the Town Council to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building Any person failing to comply with such notice shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
require
culverting
of water-
course or
ditch on
building
land.

(2) Any person aggrieved by any requirement of the Town Council under the provisions of this section

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

PART IV.
—cont.

55 & 56 Vict.
c. 55.

For preven-
ting soil
and sand
from being
washed
into streets.

may appeal therefrom and section 339 of the Burgh Police (Scotland) Act 1892 shall apply in respect of any such appeal.

48. The owners or occupiers of any lands abutting upon any public street (other than lands occupied for agricultural purposes) shall so fence off channel or embank the said lands as to prevent the soil sand or other debris of such lands from falling upon or being washed or carried into any public street or into any sewer or gully in such quantities as may obstruct the street or choke up such sewer or gully and if any person shall after one month's notice in writing from the Town Council fail in any respect to comply with the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Sanitary
conveni-
ences for
workmen
engaged on
buildings.

49.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the burgh shall where practicable and if required by the Town Council provide to the reasonable satisfaction of the Town Council and until the completion of any such work or operation such water or other closets and urinals in or in connection with such building as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Any person aggrieved by any requirement of the Town Council under the provisions of this section may appeal therefrom and section 339 of the Burgh Police (Scotland) Act 1892 shall apply in respect of any such appeal.

PART V.

MISCELLANEOUS.

Control of
vacant
building
areas and
derelict
buildings.

50.—(1) For the protection of the amenity of the burgh and for preventing the disfigurement of the streets by the unsightly condition of adjacent lands and buildings the Town Council may make byelaws for regulating the manner in which vacant building sites fronting or

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

abutting on streets and unoccupied or ruinous buildings in streets shall be kept : A.D. 1937.

Provided that no byelaws made under the authority of this section shall prevent or interfere with the erection of hoardings for advertisements on any vacant building site or building or the exhibition on such site or building of any advertisement as defined by the Advertisements Regulation Acts 1907 and 1925.

PART V.
—cont.

(2) Byelaws made under the authority of this section shall not apply to any such site or to any building in a street unless at least one-half of the frontage of one side of the street is built upon.

(3) Byelaws made under the powers of this section shall not take effect unless and until they have been confirmed by the Department of Health for Scotland who may allow modify or disallow the same as they may think fit.

(4) The owner and the occupier of a building site or building who fails to comply with the byelaws made under the authority of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds for each site or building in respect of which he fails to comply and to a daily penalty not exceeding forty shillings.

(5) Not less than one month before application is made by the Town Council to the said department for confirmation of a byelaw under this section notice of the intended application shall be published in one or more local newspapers circulating in the burgh and for a period of not less than one month before making such application a copy of the proposed byelaws shall be kept at the office of the town clerk and shall be available for inspection during office hours without charge and the town clerk shall furnish a copy of the proposed byelaws to any ratepayer on application.

(6) Any person who objects to any proposed byelaw or any proposed alteration of a byelaw may during the last-mentioned period of one month send notice in writing of his objection to the said department and a copy of such objection shall at the same time be sent to the town clerk and the said department shall consider

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937. the objection and any answers by the Town Council thereto before confirming the byelaw.

—
PART V.

—cont.

Byelaws
as to loud-
speakers.

51.—(1) The Town Council may make byelaws for regulating and controlling the use of loud-speakers gramophones and any other devices for the reproduction and amplification of sound (in this section referred to as “loud-speakers”) used in such manner as to be audible in any street to the annoyance of the lieges or if they think fit for prohibiting the use in such a manner as to be audible in any street of loud-speakers for advertising purposes.

(2) Sections 317 to 323 of the Burgh Police (Scotland) Act 1892 shall extend and apply to any byelaws that may be made by the Town Council under the provisions of this section.

Prohibition
of entry of
petrol &c.
into sewers.

52. Every person who wilfully turns or permits to enter into any sewer of the Town Council or any drain communicating therewith any petrol oil or other like deleterious substances from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

Borrowing
powers.

53. The Town Council may from time to time borrow at interest for the purposes of—

- (a) the payment of any capital sum which may be paid under the provisions of the sections of this Order of which the marginal notes are “Financial adjustments” “For protection of county council” and “Compensation to county council in respect of powers as to water supply”;
- (b) the payment of any capital sum in respect of any land buildings drainage works or other property taken over by the Town Council; and
- (c) the payment of the costs charges and expenses of this Order;

such sums of money as may be necessary Provided that money so borrowed for purposes (a) and (b) shall be repaid within twenty-five years from the date or dates of borrowing and that money so borrowed for purpose (c) shall be repaid within five years from the commencement of this Order.

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

54. All property transferred to or vested in the Town Council by virtue of this Order shall vest in them without the necessity of recording in the register of sasines any conveyance notarial instrument notice of title or other deed or writing but for the purpose of enabling the Town Council to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by expeding a notarial instrument notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property in favour of the Town Council.

A.D. 1937.

—
PART V.
—cont.
Vesting of
property
transferred
to Town
Council
&c.

55. Sections 52 (Powers to lay water mains through burgh) 53 (Saving of agreements between county authorities and town council of Motherwell and further provision as to drainage from county areas) and 54 (Provision as to lighting water supply &c. in county roads) of the Order of 1920 shall apply and have effect as if the same had with the necessary modifications been re-enacted in this Order.

For further
protection
of county
council.

56. The following provisions for the protection of the Clyde Valley Electrical Power Company (hereinafter in this section called "the company") shall unless otherwise agreed between the company and the Town Council apply and have effect (that is to say) :—

For pro-
tection
of Clyde
Valley
Electrical
Power
Company.

Notwithstanding anything in this Order contained the company shall subject to the provisions of the Clyde Valley Electrical Power Acts 1901 to 1934 be entitled to exercise all the powers of their said Acts in their area of supply in the same way as if this Order had not been passed notwithstanding the said area or some part thereof is comprised within the burgh.

57. For the protection of the proprietors of the Dalzell Estates and their successors (in this section referred to as "the proprietors") the following provisions (unless otherwise agreed in writing between the Town Council and the proprietors) shall apply and have effect (that is to say) :—

For pro-
tection of
lands of
Dalzell.

The Town Council shall not acquire compulsorily for housing or other purposes the whole or any

A.D. 1937.

PART V.

—cont.

part of the lands of the proprietors comprised within the following area (that is to say) the area lying to the southward of the existing burgh and comprehended within a line commencing at the east side of Manse Road where the prolongation of the northern boundary of inclosure 44 as delineated on the 1/2500 Ordnance map Lanarkshire sheet XVIII.1 edition 1912 would intersect the said east side of Manse Road thence east in a straight line to the east side of the roadway to Dalzell Farm at a point twenty-one yards south of the north-west corner of inclosure 88 as delineated on the 1/2500 Ordnance map Lanarkshire sheet XVIII.2 edition 1912 thence south-east in a straight line to the west boundary of inclosure 69A on the said last mentioned map at a point ninety yards north of the south corner of the said inclosure 69A thence southwards westwards and south-west following the south-east boundary of inclosure 61 on the said last mentioned map and the south-west boundary of inclosure 59 on the said last mentioned map to a point one hundred and six yards from the south corner of the said inclosure 59 thence south-east in a straight line to a point in the Adders Gill parliamentary county division boundary seventy yards south-west from the north-eastern corner of inclosure 52A thence southwards and westwards along the said Adders Gill parliamentary county division boundary to the centre line of the river Clyde thence westwards north-west north-east north-west and north-east along the centre of the river Clyde to a point in the centre of the river Clyde at the south-east face of the viaduct carrying the Lesmahagow branch of the London Midland and Scottish Railway over the said river Clyde thence south-east in a straight line to the south-west boundary of the road leading to Camp Colliery and continuing along the said boundary to the north-west corner of inclosure 21 on the said first mentioned map thence south-west along the east side of the road

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

leading to Broomside Colliery for a distance of fifty yards thence south-east parallel to and at a distance of fifty yards from the south side of the road leading to Camp Colliery now known as North Lodge Avenue until it meets the west side of Manse Road thence northerly following the west side of Manse Road for a distance of fifty-five and a half yards until it meets the south side of the road leading to Camp Colliery now known as North Lodge Avenue at the north-east corner of the said inclosure 21 thence north-easterly and along the east side of Manse Road to the point of commencement.

A.D. 1937.

—
PART V.
—cont.

58. Any penalty under this Order or under any byelaws or regulations made under this Order unless otherwise specially provided for may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts. Recovery of penalties.

59. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed by them under this Order for that purpose. Costs of Order.

A.D. 1937 The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Interpretation.")

BOUNDARIES OF THE ADDED AREAS.

FIRST.

Area within parish of Dalziel and county of Lanark.

Commencing at a point 155 yards south-west from the north-west corner along western boundary of inclosure 181A (public park) thence in a north-easterly direction following the said western boundary to the north-west corner of inclosure 181A on the said map thence east along northern boundary fence of public park inclosure 181A until it meets Carfin Road thence south along the west side of Carfin Road for a distance of 12 yards on the said map thence east for a distance of 54 yards to a point in inclosure 180 which point is 50 yards east of centre line of Carfin Road thence south for a distance of 73 yards parallel with and at a distance of 50 yards from centre line of Carfin Road thence west in a straight line until it meets the point of commencement.

SECOND.

Area within the parishes of Dalziel and Cambusnethan and county of Lanark.

Commencing at a point on the western boundary of the London Midland and Scottish Railway (Wishaw to Holytown) 8 yards south of the south-eastern corner of inclosure 2353B thence north-west along the west side of the said railway for a distance of 23 yards thence east across the said railway for a distance of 32 yards to the east boundary of the embankment of the London Midland and Scottish Railway (Wishaw to Holytown) thence north along east boundary of railway embankment for a distance of 106 yards thence east in a straight line to the northmost point in inclosure 2348 on the east side of entrance drive to Wishaw House thence north-east following the eastern side of the said drive to a point 30 yards south of the north-west corner of inclosure 2345 thence east in a straight line to the north-west corner of inclosure 2310 thence east following the

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

northern boundaries of inclosures 2310 and 2342 to the north-east corner of inclosure 2342 thence east in a straight line till it intersects the centre of the Temple Gill in inclosure 2311 thence east and south-east following the centre line of Temple Gill to a point which is the projection of the western boundary of inclosure 2339 thence north-east to the north-west corner of inclosure 2332 thence east following the northern boundaries of inclosures 2332 738 2255A and 903 to the eastern side of the entrance to "North-muir" thence east in a straight line until it meets the north-west corner of inclosure 907 thence east in a straight line to a point in inclosure 913 which point is 5 yards south of the south boundary of inclosure 2244 at a point on the said south boundary measuring 143 yards south-west from the south-east corner of the said inclosure 2244 thence south-west to a point in inclosure 912 thence south-west in a straight line for a distance of 326 yards and passing 3 yards south of the south-west corner of inclosure 911 till it meets the west boundary of inclosure 908 at a point 90 yards north from the south-west corner of the said inclosure 908 thence south-west in a straight line till it meets the centre of Coltness Road at a point 117 yards measured along centre line of Coltness Road south-east of prolongation of the northern boundary of inclosure 707 thence north-west for a distance of 117 yards along the centre line of Coltness Road until it meets the prolongation of the northern boundary of inclosure 707 thence west and south-west along the northern boundary of the said inclosure 707 thence south-east for a distance of 31 yards thence south-west for a distance of 91 yards thence north-west for a distance of 48 yards until it meets the south boundary of inclosure 710 thence south-west for a distance of 50 yards along the south boundary and prolongation thereof of inclosure 710 until it meets the east side of the stone wall forming the west boundary of the right-of-way known as Coltness Ryde thence north-east for a distance of 101 yards along the east side of the said stone wall thence west until it meets the west boundary of inclosure 734A at a point 52 yards north-west from the south-west corner of the said inclosure 734A thence south-west in a straight line to a point on the centre line of the stone boundary wall forming the north-east boundary of inclosure 695 which point is the prolongation of the centre line of the private road running in the continuation of Park Street thence north-west along the centre line of the said wall to a point 55 yards south-east of the north-west corner of inclosure 695 thence south-west to a point 50 yards east from the fence on the east side of Glen Road thence south 50 yards from and parallel to the bend on the east side of Glen Road for a distance of 174 yards thence north-west in a straight line for a distance of 60 yards until it meets the centre line of Glen Road thence west in a straight line crossing the east boundary of inclosure 718 at a point 16 yards north of the south-east corner of the said inclosure

A.D. 1937.

—
1st Sch.
—cont.

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937. 718 and continuing to a point in inclosure 692 10 yards south from
 — the south-east corner of inclosure 729 thence south south-west
 1ST SCH. and south to a point in inclosure 690 thence south-west for a
 —cont. distance of 317 yards passing through the south-west corner of
 inclosure 690 and across the branch railway leading to Heathery
 Colliery to the east corner of inclosure 684 thence north-west
 following the south-west boundary of the London Midland
 and Scottish Railway (Wishaw to Holytown) to the point of
 commencement.

THIRD.

Area within the parish of Cambusnethan and the county of Lanark.

Commencing at a point on the west side of the embankment of
 the Wishaw and Newmains branch railway which point is 8 yards
 south-west of the south-west corner of inclosure 846 thence in a
 south-westerly direction and following the western boundary of
 the said Wishaw and Newmains branch railway for a distance of
 156 yards thence south-east for a distance of 46 yards thence
 south-west to a point on the burn through Greenhead Moss which
 point is 100 yards south-east of the point where the said burn
 intersects eastern embankment of Wishaw and Newmains branch
 railway thence south-east along the said burn to the southmost
 point on the same in inclosure 792 thence south in a straight line
 to a point in inclosure 792 which is 19 yards north-east of the
 centre line of the dismantled railway thence south-west across
 the said railway to the south-west embankment of the same
 and thence south and east following the south embankment of
 the said dismantled railway until it meets the footpath running
 south to north in inclosure 792 thence south-east following
 the west side of the said footpath until it meets the north corner
 of inclosure 756D thence south-west south-east and north-east
 around the boundary of inclosure 756D on the said map thence
 south-east along the south-west side of the access road to Moss
 Cottage until it meets the west side of the mineral railway em-
 bankment to Waterloo Colliery thence south-west along the north-
 west boundary of the said mineral railway to a point 147 yards
 beyond the south-west corner of inclosure 228 thence north-west
 for a distance of 34 yards until it meets the continuation of the
 eastern boundary of inclosure 201 at a point 20 yards south of the
 south-east corner of the said inclosure 201 thence north following
 the eastern boundary of inclosure 201 for a distance of 82 yards to
 a point in inclosure 229 thence north-west in a straight line for a
 distance of 100 yards till it meets the south-west corner of the dis-
 mantled railway in inclosure 230 thence north-west following the
 southern boundary of the dismantled railway to a point 43 yards
 south-east of division between inclosures 752A and 230 thence south-
 west in a straight line for a distance of 67 yards parallel to and at a

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

distance of 43 yards from the division between inclosures 231 and 230 thence north-west in a straight line at right angles to a point on the division between inclosures 230 and 231 which point is 52 yards north-east of the north boundary of the Wishaw to Carluke Road thence south along the division between inclosures 230 and 231 for a distance of 52 yards until it meets the northern boundary of Wishaw to Carluke Road and continuing across the said road to the south side of the same thence south-east along the northern boundaries of inclosures 194 233A and 193 to the north-east corner of inclosure 193 thence south-west along the east boundaries of inclosures 193 192 and 234 thence across the London Midland and Scottish Railway to Stirling to the north-east corner of inclosure 235 thence south-west following the eastern boundaries of inclosures 235 236 and 336 to the south-east corner of inclosure 336 thence north-west along the southern boundaries of inclosures 336 335 333 343 344 385 406 and continuing along the southern boundary of inclosure 407 for a distance of 211 yards thence north-east in a straight line to a point in the centre of the east wall of bridge carrying the Wishaw to Cambusnethan branch railway over the road known as Thornlie Road thence south-east following the line of the north-east boundary of the London Midland and Scottish Railway from Wishaw Central to Law Junction to the south-east corner of inclosure 399A thence north-east in a straight line to the south corner of inclosure 750 thence north-west until it strikes the south-west boundary of inclosure 749 at a distance of 67 yards from the centre of Greenhead Road thence north-east parallel to and at a distance of 67 yards from the centre of the said Greenhead Road until it meets the north side of the Wishaw and Newmains branch of the London Midland and Scottish Railway thence north in a straight line for a distance of 128 yards parallel to and at a distance of 67 yards from the centre of Greenhead Road thence north-east in a straight line to the point of commencement.

A.D. 1937.

—
1ST SCH.
—cont.

FOURTH.

Area within the parishes of Cambusnethan and Dalziel and the county of Lanark.

Commencing at the north-west corner of inclosure 78 thence south-east in a straight line until it meets the parliamentary county division boundary at the north-east corner of inclosure 76B thence southwards following the said parliamentary county division boundary to and along the eastern boundary of inclosure 76B and the northern and western boundaries of inclosures 540 and 539A and continuing across South Dalziel Road in the line of the west side of the dismantled railway which line is the eastern boundary of inclosure 536 to the south-east corner of inclosure 536 thence westwards along the

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937. southern boundaries of inclosures 536 537 and 537A until
 — it meets the Adders Gill parliamentary county division
 1ST SCH. boundary thence southwards and westwards along the said
 —cont. Adders Gill to the centre line of river Clyde thence westwards
 north-west north-east north-west and north-east along the
 centre of the river Clyde to a point in the centre of the river
 Clyde at the south-east face of the viaduct carrying the Lesma-
 hagow branch of the London Midland and Scottish Railway
 over the said river Clyde thence south-east in a straight line to
 the south-west boundary of the road leading to Camp Colliery and
 continuing along the said boundary to the north-west corner of
 inclosure 21 thence south-west along the east side of the road
 leading to Broomside Colliery for a distance of 50 yards thence
 south-east parallel to and at a distance of 50 yards from the
 south side of the road leading to Camp Colliery until it meets the
 west side of the Manse Road thence northerly following the
 west side of Manse Road for a distance of 55½ yards until it
 meets the south side of the road leading to Camp Colliery at the
 north-east corner of inclosure 21 thence north-easterly and
 northerly along the east and south-east side of Manse Road to
 the north-west corner of inclosure 94 thence east following the
 northern boundary of inclosure 94 and the southern boundary
 of inclosure 96 until it reaches the south-east corner of inclosure
 96 thence easterly in a straight line until it meets the fence
 enclosing the railway at Flemington goods station at the most
 easterly point of inclosure 137 thence south-east following the
 south-west side of old South Dalziel Road and the south-west
 side of South Dalziel Road to the prolongation of the boundary
 between inclosures 539 and 74 thence north-east following the
 boundary between inclosures 539 and 74 until it meets the east
 corner of inclosure 74 thence in a north-eastern direction crossing
 the Whinney Burn along the boundary between inclosures 76A
 76 and 82 and continuing along the western boundary of in-
 closure 78 for a distance of 40 yards thence in a north-westerly
 direction in a straight line to the point of commencement.

FIFTH.

Area within the parishes of Bothwell and Dalziel and the county
 of Lanark.

Commencing at a point on the north face of the bridge
 carrying the main Motherwell and Hamilton Road on the east
 bank of the river Clyde and following the north face of the said
 bridge to the centre of the river Clyde thence north-west west
 north-east and north-west along the centre line of the river Clyde
 to a point on the parliamentary county division boundary on
 the centre line of South Calder Water thence north-east east

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

and north generally following the centre line of South Calder Water to the north face of the viaduct carrying the London Midland and Scottish Railway (Motherwell to Glasgow) over the South Calder Water thence east along the north face of the said viaduct until it reaches the east bank of the South Calder Water at the north face of the viaduct carrying the said railway over the said South Calder Water thence in a south-easterly direction following the northern boundary of the London Midland and Scottish Railway (Motherwell to Glasgow) to the east corner of the London Midland and Scottish Railway signal box thence south-west to the south corner of the said signal box thence south-east east south-east and east to a point 58 yards south-east of the south side of the entrance across the railway to Watling Street (Roman Road) thence south-easterly along the west side of the Motherwell and Bellshill Road to a point in the centre of the London Midland and Scottish Railway leading to Perth and the North at the south-west face of the bridge carrying the Motherwell and Bellshill Road over the said railway thence generally in a south-westerly direction to a point in the centre of the ditch between inclosures 423 and 437 and distant 168 yards from the east corner of inclosure 437 thence south-easterly in a straight line to a point distant 14 yards from the north-west corner of inclosure 398 thence south-westerly along the south side of Ladywell Road to the north-west corner of inclosure 407 thence south-easterly in a straight line to a point distant 109 yards along the main accommodation road leading through Logan's Plantation from its commencement at the Motherwell and Hamilton Road thence in a north-westerly direction following the north-east side of the said main accommodation road to a point on the east side of the said main accommodation road leading through the Logan's Plantation passing through the intersection of the west side of the said accommodation road with the north side of the access road to inclosure 445 thence westerly to a point 148 yards distant from the north-east corner of inclosure 445D thence south-easterly following the eastern boundary of inclosure 445 to the north-east corner of inclosure 445D thence south-easterly following the north part of the north-eastern boundary of inclosure 445D and continuing in a straight line until it meets the north bank of the river Clyde at a point 170 yards west of the western boundary of inclosure 371 thence east and south-east following the north and east bank of the river Clyde to the point of commencement.

A.D. 1937.

—
1ST SCH.
—cont.

SIXTH.

Area within the parish of Bothwell and the county of Lanark.

Commencing at the north-east corner of inclosure 542 and continuing the eastern boundary of the said inclosure 542 in a straight line to the east side of the roadway leading to Annandale

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation I GEO. 6.]
Act, 1937.

A.D. 1937. Place thence northwards and north-eastwards following the western boundary of inclosure 315 to the north-west corner of the said inclosure 315 thence south-eastwards along the northern boundaries of inclosures 315 316 and 245 and continuing for a distance of 4 yards to the western boundary of inclosure 243 thence north-eastwards to the north-west corner of inclosure 243 thence eastwards following the northern boundary of the said inclosure 243 to the north-east corner of the same thence south for a distance of 20 yards along the eastern boundary of inclosure 243 thence eastwards to the north-west corner of inclosure 241 thence south-easterly along the east side of Jerviston Road to the south corner of inclosure 237 thence south-westerly in a straight line to the north point of inclosure 181 thence south-easterly following the west side of railway known as Jerviston Branch to a point distant 100 yards from the centre of Merry Street thence south-west in a straight line parallel to and 100 yards distant from the centre line of Merry Street to a point on the north-east boundary of inclosure 326 thence north-westerly for a distance of 153 yards following the north-east boundary of the said inclosure 326 thence southerly and westerly following the boundaries of inclosure 326 to a point 23 yards west of the west corner of inclosure 326 thence north-west in a straight line to a point where the inclosures 171 and 334 intersect on the east bank of the South Calder Water thence north-west and south-west following the centre of the South Calder Water to a point on the continuation of the east boundary of inclosure 492 thence north-east following the eastern boundary of inclosure 492 and the eastern and northern boundaries of inclosure 542 to point of commencement.

SEVENTH.

Area within the parish of Bothwell and county of Lanark.

Commencing at the north-west corner of inclosure 189 and following the northern boundaries of inclosures 189 and 193 to the north-east corner of the said inclosure 193 thence south-west south-east east and south-east following the eastern boundary of inclosure 193 to the south-east corner of the said inclosure 193 on the northern side of the Motherwell-Stirling Road thence south-west along the northern boundary of the said Motherwell-Stirling Road for a distance of 57 yards thence north-west to a point 100 yards distant from the centre of Merry Street measured at right angles thence south-west in a straight line for a distance of 392 yards parallel to and 100 yards distant from the centre of Merry Street thence north-west in a straight line parallel to and 100 yards distant from the centre of Jerviston Road measured at right angles till it meets the south boundary of inclosure 237 thence east following the south boundary of the said inclosure 237

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

to the south-east corner of the said inclosure 237 thence north following the eastern boundary of the said inclosure 237 to the point of commencement.

A.D. 1937.

1st Sch.
—cont.

NOTE.—The numbers of the inclosures hereinbefore referred to are those delineated on the 1/2500 Ordnance map Lanarkshire sheets XI. 12 16 XII. 9 10 13 14 15 16 XVIII. 1 2 3 4 7 8 edition 1912.

SECOND SCHEDULE.

(Referred to in the section of this Order of which the marginal note is “Extension of boundaries.”)

BOUNDARIES OF THE BURGH.

Commencing at a point on the branch railway from Shieldmuir to Jerviston which point is 103 yards north from the north side of the public road leading from Carluke to Glasgow and 57 yards west from the west side of Robberhall Road thence east in a straight line for a distance of 318 yards in line with and passing along the south boundary of inclosure 197 and continuing in line with the said boundary to a point in inclosure 191 thence in a south-easterly direction in a straight line till it meets the western boundary fence of Craigneuk Public Park inclosure 181A thence in a north-easterly direction following the said park boundary fence to the north-west corner of inclosure 181A thence east along the northern boundary fence of public park inclosure 181A until it meets Carfin Road thence south along the west side of Carfin Road for a distance of 12 yards thence east for a distance of 54 yards to a point in inclosure 180 which point is 50 yards east of the centre line of Carfin Road thence south for a distance of 73 yards parallel with and at a distance of 50 yards from the centre line of Carfin Road thence east in a straight line to the west side of the embankment of the London Midland and Scottish Railway from Wishaw to Holytown at a point 8 yards south of the south-east corner of inclosure 2353B thence north-west along the west side of the said railway for a distance of 23 yards thence east across the said railway for a distance of 32 yards to the east boundary of the embankment of the said railway thence north along east boundary of railway embankment for a distance of 106 yards thence east in a straight line to the northmost point in inclosure 2348 on the east side of entrance drive to Wishaw House thence north-east following the eastern side of the said drive to a point 30 yards south of north-west corner of inclosure 2345 thence east in a straight line to the north-west corner of inclosure 2310 thence

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937.

—
 2ND SCH.
 —cont.

east following the northern boundaries of inclosures 2310 and 2342 to the north-east corner of inclosure 2342 thence east in a straight line till it intersects the centre of the Temple Gill in inclosure 2311 thence east and south-east following the centre line of Temple Gill to a point which is the projection of the western boundary of inclosure 2339 thence north-east to the north-west corner of inclosure 2332 thence east following the northern boundaries of inclosures 2332 738 2255A and 903 to the eastern side of the entrance to "Northmuir" thence east in a straight line until it meets the north-west corner of inclosure 907 thence east in a straight line to a point in inclosure 913 which point is 5 yards south of the south boundary of inclosure 2244 at a point on the said south boundary measuring 143 yards south-west from the south-east corner of the said inclosure 2244 then south-east in a straight line to a point on the east boundary of inclosure 895 and measuring 13 yards north-west from the south-east corner of the said inclosure 895 thence south-west in a straight line till it meets the south-west side of Woodhall Road at a point 30 yards north-west from the north corner of inclosure 859A thence south-westerly in a straight line to a point on the west side of the embankment of the Wishaw and Newmains branch railway which point is 8 yards south-west of the south-west corner of inclosure 846 thence in a south-westerly direction and following the western boundary of the said Wishaw and Newmains branch railway for a distance of 156 yards thence south-east for a distance of 46 yards thence south-west to a point on the burn through Greenhead Moss which point is 100 yards south-east of point where the said burn intersects the eastern embankment of Wishaw and Newmains branch railway thence south-east along the said burn to the southmost point on the same in inclosure 792 thence south in a straight line to a point in inclosure 792 which is 19 yards north-east of the centre line of the dismantled railway thence south-west across the said railway to the south-west embankment of the same and thence south and east following the south embankment of the said dismantled railway until it meets the footpath running south to north in inclosure 792 thence south-east following west side of the said footpath until it meets the north corner of inclosure 756D thence south-west south-east and north-east around the boundary of inclosure 756D thence south-east along the south-west side of the access road to Moss Cottage until it meets the west side of the mineral railway embankment to Waterloo Colliery thence south-west along the north-west boundary of the said mineral railway to a point 147 yards beyond the south-west corner of inclosure 228 thence north-west for a distance of 34 yards until it meets the continuation of the eastern boundary of inclosure 201 at a point 20 yards south of the south-east corner of the said inclosure 201 thence north following the eastern boundary of inclosure 201 for a distance of 82 yards

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

to a point in inclosure 229 thence north-west in a straight line for a distance of 100 yards till it meets the south-west corner of the dismantled railway in inclosure 230 thence north-west following the southern boundary of the dismantled railway to a point 43 yards south-east of the division between inclosures 752A and 230 thence south-west in a straight line for a distance of 67 yards parallel to and at a distance of 43 yards from the division between inclosures 231 and 230 thence north-west in a straight line at right angles to a point on the division between inclosures 230 and 231 which point is 52 yards north-east of the north boundary of Wishaw to Carluke Road thence south along division between inclosures 230 and 231 for a distance of 52 yards until it meets the northern boundary of the Wishaw to Carluke Road and continuing across the said road to the south side of the same thence south-east along the northern boundaries of inclosures 194 233A and 193 to the north-east corner of inclosure 193 thence south-west along the east boundaries of inclosures 193 192 and 234 thence across the London Midland and Scottish Railway to Stirling to the north-east corner of inclosure 235 thence south-west following the eastern boundaries of inclosures 235 236 and 336 to the south-east corner of inclosure 336 thence north-west along the southern boundaries of inclosures 336 335 333 343 344 385 406 and continuing along the southern boundary of inclosure 407 for a distance of 211 yards thence south-west for a distance of 10 yards to a point 62 yards south-east from the west corner of inclosure 406 thence north-westwards to the west corner of the said inclosure 406 thence following the north-east boundary of the said railway to a point where the east boundary of inclosure 102 meets the said north-east boundary of the said railway thence in a southerly direction in a straight line to the north-west corner of inclosure 78 thence south-east in a straight line until it meets the parliamentary county division boundary at the north-east corner of inclosure 76B thence southwards following the said parliamentary county division boundary to and along the eastern boundary of inclosure 76B and the northern and western boundaries of inclosures 540 and 539A and continuing across South Dalziel Road in the line of the west side of the dismantled railway which line is the eastern boundary of inclosure 536 the south-east corner of inclosure 536 thence westwards along the southern boundaries of inclosures 536 537 and 537A until it meets the Adders Gill parliamentary county division boundary thence southwards and westwards along the said Adders Gill to the centre line of river Clyde thence westwards north-west north-east north-west and north-east along the centre of the river Clyde to a point in the centre of the river Clyde at the south-east face of the viaduct carrying the Lesmahagow branch of the London Midland and Scottish Railway over the said river Clyde thence north-easterly along the south-eastern face of

A.D. 1937.

—
2ND SCH.
—cont.

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

—
2ND SCH.
—cont.

the said viaduct and continuing along the south-east boundary of the said railway to a point 106 yards beyond the south-west boundary of inclosure 40A thence westerly in a straight line for a distance of 195 yards to a point in inclosure 357 thence north-west in a straight line till it meets the division between inclosures 358 and 359 thence northerly in the line of and continuing along the western boundary of inclosure 390 to a point at the north-west corner of the said inclosure 390 thence north-westerly and westerly for a distance of 173 yards along the northern boundary of inclosure 386 thence north-westerly in a straight line to a point on the northern boundary of the main Motherwell and Hamilton Road distant 37 yards from the south-west corner of inclosure 398 measuring in a north-easterly direction along the said northern boundary of the said road thence generally westerly south-westerly and westerly along the northern and western boundary of the said Motherwell and Hamilton Road to the centre of the river Clyde thence north-west west north-east and north-west along the centre line of the river Clyde to a point on the parliamentary county division boundary on the centre line of South Calder Water thence north-east east and north generally following the centre line of South Calder Water to the north face of the viaduct carrying the London Midland and Scottish Railway (Motherwell to Glasgow) over the South Calder Water thence east along the north face of the said viaduct until it reaches the east bank of the South Calder Water at the north face of the viaduct carrying the said railway over the said South Calder Water thence north and north-east following the east bank of the South Calder Water until it meets the west side of the Motherwell and Bellshill Road at Holm-forge Bridge thence in a south-easterly direction along the west side of the said Motherwell and Bellshill Road until it reaches a point 7 yards south from the south-east corner of inclosure 527 thence in an easterly direction for a distance of 67 yards in a straight line at right angles to the said road thence south-easterly in a straight line to the west corner of the London Midland and Scottish Railway coaling shed thence along the south-west wall of the said coaling shed thence southerly to the west corner of the engine shed thence south-east in a straight line for a distance of 81 yards along the south-west wall of the said engine shed and in continuation of the line of the same thence north-easterly east and north-easterly to the south-west corner of inclosure 498 then following the west boundary of inclosures 498 and 498A to the north corner of the said inclosure 498A thence north-west for a distance of 9 yards in continuation of the south-west side of Globe Street thence generally north to a point in the south-west boundary of inclosure 544 and 35 yards east of the London Midland and Scottish Railway (Motherwell to Perth) thence north-westerly and north following the boundary of inclosure 544 and along the east side

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

of the said railway to a point in the centre of South Calder Water at the east face of viaduct carrying the aforesaid railway over the South Calder Water thence in a south-easterly direction following the centre of South Calder Water to a point at the south face of the bridge carrying Glen Street over the said South Calder Water thence in a north-easterly direction following the south side of the public road in continuation of Glen Street and continuing in a south-easterly direction following the north-east and northern boundary of inclosure 542 to the eastern boundary of the said inclosure thence northwards in prolongation of the said eastern boundary to the east side of the roadway leading to Annandale Place thence northwards and north-eastwards following the western boundary of inclosure 315 to the north-west corner of the said inclosure 315 thence south-eastwards along the northern boundaries of inclosures 315 316 and 245 and continuing for a distance of 4 yards to the western boundary of inclosure 243 thence north-eastwards to the north-west corner of inclosure 243 thence eastwards following the northern boundary of the said inclosure 243 to the north-east corner of the same thence southwards for a distance of 20 yards along the eastern boundary of inclosure 243 thence eastwards to the north-west corner of inclosure 241 thence east south-west and south around the north and east boundaries of inclosure 241 to a point where the prolongation of the east boundary of the said inclosure intersects the northern boundary of inclosure 237 thence easterly following the south boundary of inclosure 240 and continuing the same in a straight line until it meets the north boundary of inclosure 237 thence east following the northern boundaries of inclosures 237 189 and 193 to the north-east corner of the said inclosure 193 thence south-west south-east east and south-east following the eastern boundary of inclosure 193 to the south-east corner of the said inclosure 193 on the northern side of the Motherwell-Stirling Road thence south-west along the northern boundary of the said Motherwell-Stirling Road for a distance of 57 yards thence south-east in a straight line to a point on the south-western boundary of inclosure 198 100 yards from the centre of Merry Street thence south-west in a straight line for a distance of 605 yards parallel to and 100 yards distant from the centre of Merry Street thence south-easterly in a straight line to and continuing along the division line between inclosures 158 and 163 to the north side of South Calder Water thence south-easterly in a straight line to the centre of Todhole Burn on the south side of bridge carrying Coursington Road over Todhole Burn thence south and south-easterly along centre of the said burn until it reaches the north side of the branch mineral railway leading from Shieldmuir to Dalzell Steel and Iron Works at the south-east corner of inclosure 265 thence south across the said railway to the north-east corner of inclosure 266 thence south and south-west along the south-east

A.D. 1937.

—
2ND SCH.
—cont.

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937. boundary of the said inclosure 266 until its prolongation meets the south-west boundary of branch railway from Shieldmuir to Jerviston at the north-east corner of inclosure 267 thence south-east in a straight line for a distance of 93 yards along the south-west boundary of the said railway and the prolongation thereof thence north-east for a distance of 12 yards thence in a southerly direction following the railway from Shieldmuir to Jerviston to the point of commencement.

—
 2ND SCH.
 —cont.

NOTE.—The numbers of the inclosures hereinbefore referred to are those delineated on the 1/2500 Ordnance map Lanarkshire sheets XI. 12 16 XII. 9 10 13 14 15 16 XVIII. 1 2 3 4 7 8 edition 1912.

THIRD SCHEDULE.

(Referred to in the section of this Order of which the marginal note is “Added areas added to existing wards.”)

PART I.

PORTION OF ADDED AREAS ADDED TO WARD NO. 1.

The area lying to the southward of the existing burgh and comprehended within a line commencing at the north-west corner of inclosure 78 thence south-east in a straight line until it meets the parliamentary county division boundary at the north-east corner of inclosure 76B thence southwards following the said parliamentary county division boundary to and along the eastern boundary of inclosure 76B and the northern and western boundaries of inclosures 540 and 539A and continuing across the South Dalziel Road in the line of the west side of the dismantled railway which line is the eastern boundary of inclosure 536 to the south-east corner of inclosure 536 thence westwards along the southern boundaries of inclosures 536 537 and 537A until it meets the Adders Gill parliamentary county division boundary thence southwards and westwards along the said Adders Gill to the centre line of river Clyde thence westwards along the centre line of river Clyde to the prolongation of the centre line of the north part of the footpath running south to north in inclosure 14 thence north-west and northwards generally following the centre line of the said footpath and roadway past Broomside Colliery to the south side of road leading to Camp Colliery and continuing northwards along the centre line of Manse Road until it meets the prolongation of the northern boundary of inclosure 94 thence east following the northern boundary of inclosure 94 and the southern boundary of inclosure 96 until it reaches the south-east corner

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

of inclosure 96 thence easterly in a straight line until it meets the fence enclosing the railway at Flemington goods station at the most easterly point of inclosure 137 thence south-east following the south-west side of the old South Dalziel Road and the south-west side of South Dalziel Road to the prolongation of the boundary between inclosures 539 and 74 thence north-east following the boundary between inclosures 539 and 74 until it meets the east corner of inclosure 74 thence in a north-eastern direction crossing the Whinney Burn along the boundary between inclosures 76A 76 and 82 and continuing along the western boundary of inclosure 78 for a distance of 40 yards thence in a north-westerly direction in a straight line to the point of commencement.

A.D. 1937.

—
3RD SCH.
—cont.

PART II.

PORTION OF ADDED AREAS ADDED TO WARD No. 2.

The area lying to the westward of the existing burgh and comprehended within a line commencing at a point on the north face of the bridge carrying the main Motherwell and Hamilton Road on the east bank of the river Clyde and following the north face of the said bridge to the centre of the river Clyde thence north-west west north-east along the centre line of river Clyde to the prolongation of the centre of the burn between inclosures 444 and 445 thence south-east south east and north-east generally following the centre of the said burn to a point in the centre of the ditch between inclosures 423 and 437 and distant 168 yards from the east corner of inclosure 437 thence south-easterly in a straight line to a point distant 14 yards from the north-west corner of inclosure 398 thence south-westerly along the south side of Ladywell Road to the north-west corner of inclosure 407 thence south-easterly in a straight line to a point distant 109 yards along the main accommodation road leading through Logan's Plantation from its commencement at the Motherwell and Hamilton Road thence in a north-westerly direction following the north-east side of the said main accommodation road to a point on the east side of the said main accommodation road leading through the Logan's Plantation passing through the intersection of the west side of the said accommodation road with the north side of the access road to inclosure 445 thence westerly to a point 148 yards distant from the north-east corner of inclosure 445D thence south-easterly following the eastern boundary of inclosure 445 to the north-east corner of inclosure 445D thence south-easterly following the north part of the north-eastern boundary of inclosure 445D and continuing in a straight line until it meets the north bank of the river Clyde at a point 170 yards west of the western boundary of inclosure 371 thence east and south-east following the north and east bank of the river Clyde to the point of commencement.

A.D. 1937.

PART III.

3RD SCH.
—cont.

PORTIONS OF ADDED AREAS ADDED TO WARD No. 3.

(a) The area lying to the northward of the existing burgh and comprehended within a line commencing at the north-east corner of inclosure 542 and continuing the eastern boundary of the said inclosure 542 in a straight line to the east side of the roadway leading to Annandale Place thence northwards and north-eastwards following the western boundary of inclosure 315 to the north-west corner of the said inclosure 315 thence south-eastwards along the northern boundaries of inclosures 315 316 and 245 and continuing for a distance of 4 yards to the western boundary of inclosure 243 thence north-eastwards to the north-west corner of inclosure 243 thence eastwards following the northern boundary of the said inclosure 243 to the north-east corner of the same thence south for a distance of 20 yards along the eastern boundary of inclosure 243 thence eastwards to the north-west corner of inclosure 241 thence south-easterly along the east side of Jerviston Road to the south corner of inclosure 237 thence south-westerly in a straight line to the north point of inclosure 181 thence south-easterly following the west side of railway known as Jerviston Branch to a point distant 100 yards from the centre of Merry Street thence south-west in a straight line parallel to and 100 yards distant from the centre line of Merry Street to a point on the north-east boundary of inclosure 326 thence north-westerly for a distance of 153 yards following the north-east boundary of the said inclosure 326 thence southerly and westerly following the boundaries of inclosure 326 to a point 23 yards west of the west corner of inclosure 326 thence north-west in a straight line to a point where the inclosures 171 and 334 intersect on the east bank of the South Calder Water thence north-west and south-west following the centre of the South Calder Water to a point on the continuation of the east boundary of inclosure 492 thence north-east following the eastern boundary of inclosure 492 and the eastern and northern boundaries of inclosure 542 to the point of commencement.

(b) The area lying to the northward of the existing burgh and comprehended within a line commencing at the north-west corner of inclosure 189 and following the northern boundaries of inclosures 189 and 193 to the north-east corner of the said inclosure 193 thence south-west south-east east and south-east following the eastern boundary of inclosure 193 to the south-east corner of the said inclosure 193 on the northern side of the Motherwell-Stirling Road thence south-west along the northern boundary of the said Motherwell-Stirling Road for a distance of 57 yards thence north-west to a point 100 yards distant from the centre of Merry Street measured at right angles thence south-west in

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

a straight line for a distance of 392 yards parallel to and 100 yards distant from the centre of Merry Street thence north-west in a straight line parallel to and 100 yards distant from the centre of Jerviston Road measured at right angles till it meets the south boundary of inclosure 237 thence east following the south boundary of the said inclosure 237 to the south-east corner of the said inclosure 237 thence north following the eastern boundary of the said inclosure 237 to the point of commencement.

A.D. 1937.

—
3RD SCH.
—cont.

PART IV.

PORTION OF ADDED AREAS ADDED TO WARD No. 4.

The area lying to the westward of the existing burgh and comprehended within a line commencing at a point in the centre of the river Clyde on the prolongation of the centre of burn between inclosures 444 and 445 thence north-east and north-west along the centre line of river Clyde to a point on the parliamentary county division boundary on the centre line of South Calder Water thence north-east east and north generally following the centre line of South Calder Water to the north face of the viaduct carrying the London Midland and Scottish Railway (Motherwell to Glasgow) over the South Calder Water thence east along the north face of the said viaduct until it reaches the east bank of the South Calder Water at the north face of the viaduct carrying the said railway over the said South Calder Water thence in a south-easterly direction following the northern boundary of the London Midland and Scottish Railway (Motherwell to Glasgow) to the east corner of the London Midland and Scottish Railway signal box thence south-west to the south corner of the said signal box thence south-east east south-east and east to a point 58 yards south-east of the south side of the entrance across railway to Watling Street (Roman Road) thence south-easterly along the west side of the Motherwell and Bellshill Road to a point in the centre of the London Midland and Scottish Railway leading to Perth and the North at the south-west face of the bridge carrying the Motherwell and Bellshill Road over the said railway thence generally in a south-westerly direction to a point in the centre of the ditch between inclosures 423 and 437 and distant 168 yards from the east corner of inclosure 437 thence south-westerly following the centre of the said ditch and burn to the point of commencement.

PART V.

PORTION OF ADDED AREAS ADDED TO WARD No. 5.

The area lying to the southward of the existing burgh and comprehended within a line commencing at a point in the centre of the river Clyde on the prolongation line of the centre of the

[Ch. lxxxii.] *Motherwell and Wishaw* [1 EDW. 8. &
Burgh Order Confirmation 1 GEO. 6.]
Act, 1937.

A.D. 1937. north part of the footpath running south to north in inclosure 14
 — thence west north-west north-east north-west and north-east
 3RD SCH. along the centre of the river Clyde to a point in the centre of
 —cont. the river Clyde at the south-east face of the viaduct carrying
 the Lesmahagow branch of the London Midland and Scottish
 Railway over the said river Clyde thence south-east in a straight
 line to the south-west boundary of the road leading to Camp
 Colliery and continuing along the said boundary to the north-west
 corner of inclosure 21 thence south-west along the east side of
 road leading to Broomside Colliery for a distance of 50 yards
 thence south-east parallel to and at a distance of 50 yards from
 the south side of the road leading to Camp Colliery until it meets
 the centre of the road leading to Broomside Colliery thence
 southerly following the centre of the said road leading to Broom-
 side Colliery and continuation thereof to the point of commence-
 ment.

PART VI.

PORTIONS OF ADDED AREAS ADDED TO WARD No. 6.

(a) The area lying to the northward of the existing burgh
 and comprehended within a line commencing at a point 155 yards
 south-west from the north-west corner along the western boundary
 of inclosure 181A (public park) thence in a north-easterly direction
 following the said western boundary to the north-west corner
 of inclosure 181A thence east along northern boundary fence of
 inclosure 181A until it meets Carfin Road thence south along the
 west side of Carfin Road for a distance of 12 yards thence east for
 a distance of 54 yards to a point in inclosure 180 which point is
 50 yards east of centre line of Carfin Road thence south for a
 distance of 73 yards parallel with and at a distance of 50 yards
 from the centre line of Carfin Road thence west in a straight line
 until it meets the point of commencement.

(b) The area lying to the northward of the existing burgh
 and comprehended within a line commencing at a point on the
 western boundary of the London Midland and Scottish Railway
 (Wishaw to Holytown) 8 yards south of the south-east corner of
 inclosure 2353B thence north along the west side of the said railway
 for a distance of 23 yards thence east across the said railway for
 a distance of 32 yards to the east boundary of the embankment
 of the London Midland and Scottish Railway (Wishaw to Holytown)
 thence north along the east boundary of the railway embankment
 for a distance of 106 yards thence east in a straight line to the
 northmost point in inclosure 2348 on the east side of the entrance
 drive to Wishaw House thence north-east following the eastern
 side of the said drive to a point 30 yards south of the north-west
 corner of inclosure 2345 thence east in a straight line to the north-
 west corner of inclosure 2310 thence east following the northern

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

boundaries of inclosures 2310 and 2342 to the north-east corner of inclosure 2342 thence east in a straight line to the centre of inclosure 2341 (entrance drive in continuation of Heathery Road at its north end) thence south-west following the centre of the said entrance drive to the north-east face of the bridge carrying the London Midland and Scottish Railway (Holytown to Wishaw) over the said Heathery Road thence south-west in a straight line to the east corner of inclosure 684 thence north-west following the south-west boundary of the London Midland and Scottish Railway (Wishaw to Holytown) to the point of commencement.

A.D. 1937.

—
3RD SCH.
—cont.

PART VII.

PORTION OF ADDED AREAS ADDED TO WARD NO. 7.

The area lying to the northward of the existing burgh and comprehended within a line commencing at a point in the centre of inclosure 2341 entrance drive in continuation of Heathery Road at its north end thence east in a straight line till it intersects the centre of the Temple Gill in inclosure 2311 thence east and south-east following the centre line of Temple Gill to the centre of the bridge carrying the entrance drive to Coltness House over the said Temple Gill in inclosure 735 thence south following the centre line of the said entrance drive to Coltness House for a distance of 286 yards thence west in a straight line until it meets the west boundary of inclosure 734A at a point 52 yards north-west from the south-west corner of the said inclosure 734A thence south-west in a straight line to a point on the centre line of stone boundary wall forming the north-east boundary of inclosure 695 which point is the prolongation of the centre line of the private road running in the continuation of Park Street thence north-west along the centre line of the said wall to a point 55 yards south-east of north-west corner of inclosure 695 thence south-west to a point 50 yards east from the fence on the east side of Glen Road thence south 50 yards from and parallel to bend on east side of Glen Road for a distance of 174 yards thence north-west in a straight line for a distance of 60 yards until it meets the centre line of Glen Road thence west in a straight line crossing the east boundary of inclosure 718 at a point 16 yards north of south-east corner of the said inclosure 718 and continuing to a point in inclosure 692 10 yards south from the south-east corner of inclosure 729 thence south south-west and south to a point in inclosure 690 thence south-west in a straight line passing through the south-west corner of inclosure 690 to the centre of the continuation of Heathery Road at the north-east face of the bridge carrying the London Midland and Scottish Railway (Holytown to Wishaw) over the said Heathery Road thence north-east following the centre line of continuation of Heathery Road inclosure 721 to the point of commencement.

A.D. 1937.

PART VIII.

3RD SCH.

—cont.

PORTION OF ADDED AREAS ADDED TO WARD No. 8.

The area lying to the south-eastward of the existing burgh and comprehended within a line commencing at a point on southern boundary of the dismantled railway in inclosure 230 which point is 43 yards south-east of the division between inclosures 725A and 230 thence south-west in a straight line for a distance of 67 yards parallel to and at a distance of 43 yards from the division between inclosures 231 and 230 thence north-west in a straight line at right angles to a point on the division between inclosures 230 and 231 which point is 52 yards north-east of the north boundary of the Wishaw to Carluke Road thence south along the division between inclosures 230 and 231 for a distance of 52 yards until it meets the northern boundary of the Wishaw to Carluke Road and continuing across the said road to the south side of the same thence south-east along the northern boundaries of inclosures 194 233A and 193 to the north-east corner of inclosure 193 thence south-west along the east boundaries of inclosures 193 192 and 234 thence across the London Midland and Scottish Railway to Stirling to the north-east corner of inclosure 235 thence south-west following the eastern boundaries of inclosures 235 236 and 336 to the south-east corner of inclosure 336 thence north-west along the southern boundaries of inclosures 336 335 333 343 344 385 406 and continuing along the southern boundary of inclosure 407 for a distance of 211 yards thence north-east in a straight line to a point in the centre of the east wall of the bridge carrying the Wishaw to Cambusnethan branch railway over the road known as Thornlie Road thence south-east following the line of the north-east boundary of the London Midland and Scottish Railway from Wishaw Central to Law Junction to the south-east corner of inclosure 399A thence north-east in a straight line till it meets the prolongation of the centre line of Shand Street at a point in inclosure 752 which point is 16 yards north-west of the eastern boundary of the said inclosure 752 measured along the said prolongation line thence south-east in a straight line to the point of commencement.

PART IX.

PORTIONS OF ADDED AREAS ADDED TO WARD No. 9.

(a) The area lying to the northward of the existing burgh and comprehended within a line commencing at the centre of the bridge carrying the entrance drive to Coltness House over the Temple Gill in inclosure 735 thence south-east following the centre line of Temple Gill to a point which is the projection of the western boundary of inclosure 2339 thence north-east to the

[1 EDW. 8. & *Motherwell and Wishaw* [Ch. lxxxii.]
1 GEO. 6.] *Burgh Order Confirmation*
Act, 1937.

north-west corner of inclosure 2332 thence east following the northern boundaries of inclosures 2332 738 2255A and 903 to the east side of the entrance to "Northmuir" thence east in a straight line until it meets the north-west corner of inclosure 907 thence east in a straight line to a point in inclosure 913 which point is 5 yards south of the south boundary of inclosure 2244 at a point on the said south boundary measuring 143 yards south-west from the south-east corner of the said inclosure 2244 thence south-west to a point in inclosure 912 thence south-west in a straight line for a distance of 326 yards and passing 3 yards south of the south-west corner of inclosure 911 till it meets the west boundary of inclosure 908 at a point 90 yards north from the south-west corner of the said inclosure 908 thence south-west in a straight line till it meets the centre of Coltness Road at a point 117 yards measured along the centre line of Coltness Road south-east of the prolongation of the northern boundary of inclosure 707 thence north-west for a distance of 117 yards along the centre line of Coltness Road until it meets the prolongation of the northern boundary of inclosure 707 thence west and south-west along the northern boundary of the said inclosure 707 thence south-east for a distance of 31 yards thence south-west for a distance of 91 yards thence north-west for a distance of 48 yards until it meets the south boundary of inclosure 710 thence south-west for a distance of 50 yards along the south boundary and prolongation thereof of inclosure 710 until it meets the east side of the stone wall forming the west boundary of the right-of-way known as Coltness Ryde thence north-east for a distance of 101 yards along the east side of the said stone wall thence west in a straight line to centre of the drive leading to Coltness House inclosure 735 at a point 286 yards south of the centre of Temple Gill thence north following the centre of the said drive to the point of commencement.

A.D. 1937.

—
3RD SCH.
—cont.

(b) The area lying to the south-eastward of the existing burgh and comprehended within a line commencing at a point on the west side of the embankment of the Wishaw and Newmains branch railway which point is 8 yards south-west of the south-west corner of inclosure 846 thence in a south-westerly direction and following the western boundary of the said Wishaw and Newmains branch railway for a distance of 156 yards thence south-east for a distance of 46 yards thence south-west to a point on the burn through Greenhead Moss which point is 100 yards south-east of the point where the burn intersects eastern embankment of Wishaw and Newmains branch railway thence south-east along the said burn to the southmost point on the same in inclosure 792 thence south in a straight line to a point in inclosure 792 which is 19 yards north-east of the centre line of the dismantled railway thence south-west across the said railway

[Ch. lxxxii.] *Motherwell and Wishaw
Burgh Order Confirmation
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

—
3RD SCH.
—cont.

to the south-west embankment of the same and thence south and east following the south embankment of the said dismantled railway until it meets the footpath running south to north in inclosure 792 thence south-east following the west side of the said footpath until it meets the north corner of inclosure 756D thence south-west south-east and north-east around the boundary of inclosure 756D thence south-east along the south-west side of the access road to Moss Cottage until it meets the west side of the mineral railway embankment to Waterloo Colliery thence south-west along the north-west boundary of the said mineral railway to a point 147 yards beyond the south-west corner of inclosure 228 thence north-west for a distance of 34 yards until it meets the continuation of the eastern boundary of inclosure 201 at a point 20 yards south of the south-east corner of the said inclosure 201 thence north following the eastern boundary of inclosure 201 for a distance of 82 yards to a point in inclosure 229 thence north-west in a straight line for a distance of 100 yards till it meets the south-west corner of the dismantled railway in inclosure 230 thence north-west following the southern boundary of the dismantled railway to a point 43 yards south-east of division between inclosures 752A and 230 thence north-west in a straight line which line is the prolongation of centre line of Shand Street for a distance of 275 yards thence north-east in a straight line to the south corner of inclosure 750 thence north-west until it strikes the south-west boundary of inclosure 749 at a distance of 67 yards from the centre of Greenhead Road thence north-east parallel to and at a distance of 67 yards from the centre of the said Greenhead Road until it meets the north side of the Wishaw and Newmains branch of the London Midland and Scottish Railway thence north in a straight line for a distance of 128 yards parallel to and at a distance of 67 yards from the centre of Greenhead Road thence north-east in a straight line to the point of commencement.

NOTE.—The numbers of the inclosures hereinbefore referred to are those delineated on the 1/2500 Ordnance map Lanarkshire sheets XI. 12 16 XII. 9 10 13 14 15 16 XVIII. 1 2 3 4 7 8 edition 1912.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1s. 6d. net